



PAGERO

Country Compliance Report:

Democratic Republic of Congo

Information class: Restricted



Country Compliance Report: Democratic Republic of Congo

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Author: Mariana Fagundez
Approver: Qamar Al Hkim

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Introduction and document purpose

Pagero Group builds the world's largest, open business network – so you can reach any business, anywhere in the world. No matter how many borders your operations may cross or how many systems you are connected to, we take care of the technical and regulatory requirements across your entire order-to-cash, purchase-to-pay and freight processes. We give you data accuracy and security, transparency and real-time visibility – through a single connection.

At Pagero Group, we believe that technology supports sustainability. That's why we are committed to helping businesses become 100% paperless, supporting resource efficiency, transparency and business continuity.

The main purpose of this country compliance report is to provide the reader with an in-depth analysis of the focus country's laws, regulations, and process with regards to e-invoicing and other trade documents. The analysis considers topics such as business requirements before switching to electronic invoices, e-document creation, e-document distribution, integrity and authenticity, and, finally, e-archiving.

This document guides how Pagero solutions support customers in the focus country to meet local regulations and serves as a supplement to Pagero General E-invoicing Process Description.

The information provided by Deloitte which is part of this material was solely prepared as general information. It was prepared to meet with specific requirements and was not prepared for any other purposes or objectives. Changes in conditions over time may affect the contents of the material and its content. We do not express any opinion or conclusion in this material.



1. Terminology

This section outlines general and country-specific terminology for DRC, which will be used throughout the whole document.

Term	Explanation
DRC	Democratic Republic of the Congo
B2B	Business to Business, the exchange of goods, services or information between businesses
B2G	Business to Government, refers to the exchange of goods, services or information between a business supplier and a public procuring entity
NIU	TAX identification number: Numéro d'identification fiscal
TVA	Local VAT name: Taxe sur la Valeur Ajoutée
ICA	ICA: Impot sur le chiffre d'Affaires. In 2012 ICA was replaced by TVA (VAT)



2. General overview

This section provides an initial introduction into the local e-invoicing environment within DRC, including the types of local e-invoice regulations, go-to governmental and industry bodies, and whether multiple invoicing regimes, that is, varying regulatory requirements, exist for example by industry, business size, or other defining factors.

Item	Commentary
Authorities and other agencies relevant for e-invoicing	• Ministere Des Finances • Direction Générale des Impôts
Main applicable legislation in respect of e-invoice issuance, exchange, reception and retention	• Value Added Tax Law • Organization for the Harmonization of Business Law in Africa



3. E-Invoice status

When considering sending or receiving e-invoices two basic questions should be considered: is invoice equal to paper invoice from the legal perspective; and if there are any situations where e-Invoicing is mandatory for reception or transmission.

Item	Commentary
E-invoice status	• Allowed
Varying invoicing regimes¹	• No
e-Invoicing model	• Post-Audit
e-Invoice definition²	• The current local legislation does not have a definition of an e-invoice • A PDF invoice sent via e-mail is considered an e-invoice
Scope of taxpayers the e-document mandate applies to	• N.a.
Mandatory AoR (document response) process	• N.a.
Implementation / roll-out plan	• N.a.

¹ It is possible that a business is required to send e-invoice in some scenarios, and send voluntarily in others

² Differing definitions may exist between different levels of government, or differing legislation, i.e. accounting law and IT law



4. Before switching to e-invoices

4.1. IT³ registration

The following thresholds apply to the requirement to be registered for a IT number in DRC:

- The IT law in the DRC does not contain any provision for exemption from registration
- Voluntarily for small businesses – less than CDF80 million (approx. USD48,485)

IT number format in DRC: A1234567R

4.2. Process to switch to e-Invoicing

Even though many countries encourage or even mandate e-Invoicing, there may be specific requirements on the Trading parties – typically the Supplier – before starting an e-Invoicing program. This section provides a brief overview of such requirements.

Item	Commentary
Actions towards authorities, required in order to enable electronic processing instead of conventional processing	• N.a.
Actions between the trading partners, e.g. customer acceptance, agreement, etc.	• Notice of transition to e-invoicing. Buyer acceptance is required.
Transition period from the moment of starting e-invoicing during which, e.g. parallel invoicing may be allowed	• None

³ For the purpose of this document, IT refers to Indirect Tax, including, but not limited to Value-Added Tax (VAT), Goods and Sales Tax (GST), Sales tax, etc.

4.3. Outsourcing invoice issuance function

Many companies decide to outsource the issuance process of e-invoicing to third parties who have the necessary infrastructure and knowledge of implementing and executing e-Invoicing. This may be driven by a technical limitation or local regulatory requirements. However, before doing so, it is highly recommended that a supplier investigates whether such outsourcing is permissible and whether any requirements must be fulfilled.

Item	Commentary
Whether outsourcing of invoice issuance (creation) is allowed or not	Allowed
Whether statement of outsourced issuance is required on the invoice	N.a.
Whether outsourcing agreement is required between the taxpayer and the third-party is performing actions on its behalf	N.a.
Content and formality requirements to the Outsourcing agreement between the taxpayer and the third-party	N.a.
Whether any notifications to or derogations from authorities are required in the specific jurisdiction for outsourced issuance	N.a.
Whether, and which, requirements exist to the outsourced party to be able to act on behalf of the taxpayer	N.a.

4.4. Outsourcing invoice receipt function

Due to the unique nature of the AP process, it may be required for the buyer (invoice receiver) to have an explicit agreement, or other permissions to be put in place for Service Providers to conduct invoice receiving functions on behalf of them.

DRC has no explicit requirements on the outsourcing of the function of receiving invoices (similar to the function to issue invoices as outlined above).



5. Document processing

5.1. Format and other technical requirements

Globally, a multitude of e-Invoicing formats and infrastructures exist. Local regulators often offer or mandate the use of certain formats, standards, or platforms for the transmission or delivery of invoices or other tax-related documents. Pagero has the technical depth and experience to support country-specific technical requirements globally.

Item	Commentary
Mandated document format(s) for exchange with mandated Gov platform(s) and/or between the trading parties	• N.a.
Other document format(s) commonly used for exchange between trading parties	• PDF, Paper
Mandated platform(s) required to have connection with for e-document processing	• N.a.
Other platform(s) relevant for e-document processing	• N.a.
Schematron(s), XSD schema or other official mechanisms ensuring document content	• N.a.

Routing ID's / codes or other identifiers used in the jurisdiction for counter-party identification and document exchange	N.a.
Other technical aspects	N.a.

5.2. Communication with hub

Regulations in DRC foresee the following options on how e-documents can be communicated with the mandatory infrastructure(s):

Communication options	Commentary
Automated	N.a.
Manual	N.a.
Other options	N.a.

5.3. Issuance and clearance process

This section describes the document issuance and clearance process from the supplier perspective.

5.3.1. Domestic documents

This section describes the process for documents created to be transmitted within the given country

As opposed to some other jurisdictions, the requirements of an invoice in DRC are far less stringent. The DRC government has not provided set standard requirements or a particular structure that needs to be adhered to. As such, businesses generally follow their own particular format.

Overall order to cash and purchase to pay invoicing possibilities:

- Documents can be exchanged between suppliers and customers in various formats and via various exchange mechanisms
- The key requirements are to ensure the country-specific document content, document integrity and authenticity, as well as archiving requirements
- Neither document format nor exchange mechanism are regulated

5.3.2. Cross-Border

This section describes the requirements for cross-border outbound documents such as sales invoices

Use of e-invoicing in the cross-border scenario is not explicitly regulated in DRC.

5.4. Reception and validation process

This section describes the document reception, validation and acceptance processes from the buyer perspective.

5.4.1. Domestic documents

This section describes the process for documents received for purchases or transactions within the given country

Documents are exchanged with your suppliers and customers in various formats and via various exchange mechanisms.

5.4.2. Cross-Border

This section describes the requirements for cross-border inbound documents such as purchase invoices

Use of e-invoicing in the cross-border scenario is not explicitly regulated in Congo.

5.5. AoR (response) process

DRC has no explicit requirement that the Buyer must provide confirmation / notification that an e-invoice has been received or approved to the Supplier.

5.6. Hub validations

Some tax regimes require businesses to send tax documents to a predetermined hub either before, shortly after issuing invoices. Generally, a hub that requires this will send a reply to the issuer. This reply can be expressed as a clearance/ approval response, rejection, semi approved, etc.

However, regulations in DRC do not foresee any mandatory infrastructure for e-document process and exchange.

5.7. Invoice presentation / copy

Some regimes require a visual presentation of the invoice file to be transmitted along with the structured invoice file. This section describes if there is any regulation concerning visual or image-based presentations of invoices as a copy for the original or vice versa.

There are no requirements for invoice copies or duplicates in DRC. There are no limits on the number of invoice copies are allowed. However, the parties in a transaction must always keep one copy each in case the local tax authority request it for an audit control.

Issuing a PDF Presentation (a human-readable duplicate) when Tax invoices are issued in machine-readable format files can be confusing. To ensure the correct management of original documents, in addition to technical controls, Pagero Online adds "Copy Tax

Invoice” on PDF Presentations where Tax invoices have been issued as machine-readable format files.

5.8. Distribution between taxpayers

This section explains how and if trading parties can send invoices between each other. In some cases, hubs also distribute the tax document to the buyer.

Item	Commentary
Push communication	• N.a.
Pull communication	• N.a.
E-mail distribution	• Allowed
Webportal	• N.a.

5.9. Rectification process

This section will express the process that needs to be taken when there is an error in an invoice, how it is to be handled, and corrected by both buyer, seller, and if a notification needs to be delivered to the tax authority.

In DRC there are several situations where a rectifying invoice must be made. The value added tax paid when sales or services are subsequently terminated, cancelled, or remain unpaid may be recovered by deduction from the tax due for transactions carried out later.

- For operations *cancelled or terminated*, the recovery of the tax paid is subject to the establishment and sending to the customer of a *new invoice or credit note* cancelling and replacing the initial invoice.
- For *unpaid transactions*, when the claim is actually and definitively irrecoverable, the rectification of the invoice consists of sending a *duplicate* of the initial invoice with regulatory indications overloaded with the mention of the amount of the invoice remained unpaid at the price excluding value added tax and for the amount of tax on the corresponding added value which cannot be deducted.

When any of these conditions are met, it is required to issue a credit or debit note as rectification documents.

Rectification process	
What are the options to correct an invoice if an incorrect IT rate, exemption or reverse charge is applied on the invoice	• Credit note
What are the options to correct an invoice if the customer returns the goods	• Credit note

What are the options to correct an invoice if the customer paid too much	• Credit note
What are the options to correct an invoice if the supplier agrees to a discount after the invoice was issued to the customer	• N.a.
What are the options to correct an invoice if the invoice misses data such as name, address, IT number, invoice reference, etc.	• N.a.
Other scenarios with different correction option	• No
Party entitled to issue a credit note if the invoice was issued by the supplier (i.e. no self-billing)	• Supplier
Allowed to draft a 'waiting' document/interim document' in the absence of a purchase invoice and report IT as due and deductible on the basis of this document	• N.a.

5.10. Coexistence of paper and electronic invoices

Item	Commentary
Whether parallel invoicing (issuance and exchange of the same document in several formats, e.g. electronically and on paper) is allowed and/or whether there are any regulations surrounding it	• Allowed, however paper duplicate must also be posted, couriered or hand delivered and include a provided sticker from tax authorities on invoices with foreign companies
Whether the jurisdiction allows for document (e.g. invoice) dematerialization, i.e. destruction of the original paper invoice, for processing and/or archiving	• Not allowed
Whether any conditions apply, and which, to the dematerialisation	• N.a.
Whether the jurisdiction allows for document (e.g. invoice) materialization, i.e. destruction of the original electronic document, for processing and/or archiving	• Allowed
Whether any conditions apply, and which, to the materialisation	• Paper invoice is considered the original invoice



6. Document content requirements

6.1. Document types

Item	Commentary
Documents mandatory for issuance by supplier	• La facture “proforma” (Purchase Order Invoice)⁴ • Facture intermédiaire (Intermediary/Milestone Invoice)³ • La facture définitive (End work Invoice)⁴ • Facture de régularisation (Regulatization Invoice)⁵ • En cas d’acomptes (Pre-order/Invoice Payment)⁶ • En cas de régularisation à effectuer (Regulatization Invoice) • En cas de devis (Purchase Order)
Documents mandatory for issuance by buyer	• No explicit requirement

Item	Commentary
Self-billing allowed	• Allowed for self-supply of goods or self-provision of services
Simplified invoice allowed	• Not allowed

6.2. Document numbering

This section outlines the requirements to the sequential numbering of invoices and, where applicable, other documents.

6.2.1. Document numbering by the taxpayer

Item	Commentary
A sequential number, based on one or more series, which uniquely identifies the invoice	• Yes

⁴ Official confirmation of an order, ³ Invoice that allows the payment of annual consumption to be spread out, ⁴ Issued upon delivery of goods or service, ⁵ Invoice issued once a year, following the survey of gas and electricity meter indices, ⁶ Also known as downpayment; partial payment made by the buyer

Different series of sequential numbers allowed (e.g. a separate sequential numbering for intercompany billings, credit notes, etc.)	• Yes
Allowed to start a new sequential numbering every year	• Yes
Worldwide numbering on legal entity level allowed provided that gaps can be explained	• N.a.
Required that the numbers follow the date of issuance (i.e. is it true that an invoice with number 2 cannot have an invoice date older than the invoice with number 1)	• Yes

6.2.2. Additional document numbering

In the framework of their business purposes (i.e. when there are several invoicing sites for one company, self-invoicing, or when there are several clients for which the invoicing rules are different), the taxable persons may use invoicing numbering with a distinct series of numbers as long as the following conditions are met:

- the numbering of the invoices must be chronological at issuance

6.3. Indirect tax (IT)⁵ rates

This section illustrates the applied IT⁶ rates and provides a non-exhaustive list with examples of goods and/or services that fall within specific IT rates. IT rates that differ between different administrative units are clearly outlined.

Indirect tax rates		
16%	Standard	Applies to all supplies of goods or services, unless a specific measure provides for the zero rate or an exemption
8%	Reduced	Airline tickets (from 24 July 2021 to 24 July 2023)
0%	Exempt	Exportation of goods and services (i.e., services rendered by a resident company to a foreign entity abroad)

6.4. Mandatory IT invoice content

The section below illustrates the minimum legal requirements related to the content of invoices issued according primarily to the indirect tax regulations of DRC. Please note that other additional content requirements might apply in addition, i.a. of technical character.

⁵ For the purpose of this document, IT refers to Indirect Tax, including, but not limited to Value-Added Tax (VAT), Goods and Sales Tax (GST), Sales tax, etc.

⁶ Local name: Taxe sur la valeur ajoutée - TVA

General	
Required to mention the word "invoice"	• Yes
Required that the invoice is issued in the language of the country who is entitled to impose the invoice requirements:	• Yes, French
Sequential numbering	• Yes, see section 6.2 above
Required to mention copy or duplicate in case a copy is issued	• No explicit requirements
Reference in case of outsourced issuance	• No

Supplier data	
Full legal name of the supplier	• Yes
Allowed to abbreviate or shorten the legal name of the supplier	• Yes, provided the full legal name is mentioned as well
Full address of the supplier in country of establishment	• Yes
Allowed to mention the PO box address instead of the legal address of the supplier	• N.a.
IT identification number/sales tax number from the supplier in the country where the supply takes place for IT purposes	• Yes, if a registration is available in the country of supply
IT identification number of the supplier in the country of establishment	• No
Information (i.e. name, address, IT number) of the fiscal representative of the supplier (if appointed)	• Where relevant
Legal form of the supplier	• Yes
Trade register number of the supplier	• N.a.
Company Registry data of the supplier (e.g. court registration, address of chamber of commerce)	• N.a.
Place of legal seat of the supplier (Headquarters)	• N.a.
Other supplier data	• N.a.

Customer data	
Full legal name of the customer	• Yes
Allowed to abbreviate or shorten the legal name of the customer	• No
Address of the customer in country of establishment	• Yes

Bill-to address when it is different from the registered address of the customer	• No
Allowed to address the invoice to a Post Office Box address instead of the legal address of the customer	• No
IT identification number in the country where the supply takes place for IT purposes in case of domestic supplies (if available)	• Yes
IT identification number of the customer in the country of dispatch for invoices issued for exempt export supplies	• No
IT identification number of the customer in another Member than the Member State of dispatch for intra-Community supplies	• N.a.
Information (i.e. name, address, IT identification number) of the fiscal representative (if customer has appointed a fiscal representative)	• No
Other customer data	• No

Transaction data	
Date of issue	• Yes
Date of supply (chargeable event)	• Only if it differs from the invoice date.
Date of prepayment	• No
Description of the goods/services	• Yes • Detailed descriptions of the goods/services are required, not only collective terms
Quantity of the goods supplied or the extent of the services supplied	• Yes
Purchase order number	• No
Shipped from location (for the supply of goods)	• No explicit requirements
Shipped to location (for the supply of goods)	• No explicit requirements
Status of the goods (e.g. in bond, in free circulation)	• No explicit requirements
Incoterms	• No explicit requirements
Other information on the supplied goods/services required (except in case of intra-Community supply of new means of transport)	• No

Financial data

Taxable base per item (unit price excl. IT)	No explicit requirements
Total taxable base per IT rate or exemption	Yes
IT rate applied	Yes
Total IT amount calculated per rate	Where relevant
Total IT amount payable	Yes
Discounts/rebates if not included in the unit price	Yes
Total gross amount (including IT)	Yes
Mandatory to mention the total IT amount due in the national currency	- Yes - Invoices cannot be issued in a foreign currency in the DRC. All invoices must be issued in the domestic currency, which is the Congolese franc (CDF).
Which other amounts (i.e. none, only the total IT amount) must be mentioned in the national currency of your country	None
Exchange rate (if the invoice is not issued in the local currency)	Yes
Which exchange rate must be applied in order of priority	- Where USD is used, the rate is published by commercial banks - For tax payments, the exchange rate is published by the tax administration
Terms of payment	Where relevant
IBAN and BIC number of supplier	No, but recommended

Specific references for invoices	
Invoice reference in case of IT exemption or reverse charge	Yes
List the required references in case of exemption or reverse charge	N.a.
Allowed to refer to the appropriate provision in Directive 2006/112/EC for: - "reverse charge" for supplies subject to a reverse charge mechanism; - "supply is taxable in the country of the recipient" for B2B supplies of services; - "exempt intra-Community supply - article 138 VAT Directive"; - "Exempt export - article 146 VAT Directive"; - "simplification for triangular sales - article 141 VAT Directive - "Transfer of own goods- article 17 VAT Directive"?	N.a.

Required to specifically mention 'margin scheme - travel agencies', 'margin scheme - second hands goods', if applicable	• N.a.
Reference required if the transaction takes place outside the EU as a result of the Use and enjoyment provisions	• No
Specific other reference required, e.g. in case of barter transaction, prepayments, etc. (not self-billing or special margin schemes)	• No
Specific references required in case invoicing is outsourced	• There is no specific wording necessary. Please consider that the identity of the third party has to be guaranteed. The invoice should not make it appear as if the third party is the provider of the service.
Reference to 'cash accounting scheme' in B2B sales in case the IT is due by the supplier upon receipt of the payment/IT is deductible by the customer upon payment	• No
Other specific requirements/references to be mentioned on an invoice	• The words “Autorisation d’acquitter la TVA d’après les débits” (Authorization to pay VAT based on debits) must appear on all invoices issued by the service provider or the contractor of public works or building works.

6.5. Simplified invoice

The Supplier is not always obliged to issue a complete invoice. In certain scenarios, they may be able to issue a so-called simplified invoice.

Simplified VAT invoicing is not allowed in the DRC. As such, full VAT invoices are required.

Simplified invoicing	
Possible to issue simplified invoices for certain supplies	• No
Maximum amount for simplified invoices	• N.a.
Other supplies for which a simplified invoice can be issued	• N.a.
Simplified invoices limited to certain type of supplies	• No
Simplified invoices not allowed for certain transactions	• N.a.

Minimum content requirements on a simplified invoice	N.a.
Invoices subject to the national invoice requirements (not self-bills)	N.a.
(other) Invoices subject to the national invoice requirements (not self-bills)	N.a.

Pagero Online does not support the creation of simplified invoices as they typically do not correspond to the business requirements of Buyers.

6.6. Rectification document

In DRC, a credit note must be issued as rectification documents. A credit note should include at least the following information:

Specific references for rectification documents	
Must the word "credit note" be mentioned	Yes
Reference to original invoice required on a credit note	Invoice number recommended
Clear indication required that the amount mentioned on the credit note is crediting earlier amount (e.g. minus sign '-')	No
Reason for credit required	No, but recommended

Sequential numbering	
Separate sequential credit note numbering required	No explicit requirements
Allowed to issue one credit note to correct different invoices	Yes

Pagero Online creates corrective invoices according to the content requirements of the Complete invoice.

6.7. Withholding Tax Rates

This section illustrates the applied WHT (Withholding Tax) rates and provides a non-exhaustive list with examples of goods and/or services that fall within specific WHT rates.

WHT rates that differ between different administrative units are clearly outlined. The following are subject to a WHT in the DRC:

- Dividends
- Royalties
- Interest
- Directorship fees
- Service fees paid to foreign individuals or entities not established in the DRC

WHT rates applied in the DRC		
20%	Standard	• It is based on the gross amount of sums paid • Royalty expenses may be deducted in a amount to 30% of the gross payment (70% of the invoice)
14%	Reduced	• Income for service provided by foreign companies
10%	Reduced	• Dividends distributed by mining companies
0%	Exempt	• Interest paid to a mining company if certain conditions are satisfied



7. Integrity and Authenticity

Ensuring the integrity of the content, as well as the authenticity of the origin (I&A) of an invoice, is an obligation for both the Supplier and the Recipient.

The purpose of this section is to further clarify the local I&A requirements on B2B invoices, as well as outline whether different requirements apply to B2G invoices. The review is done both from the Supplier's and the Recipient's perspective, as varying rules may apply.

Item	Supplier	Recipient
Whether it is mandatory to ensure I&A in the jurisdiction	• No explicit requirements	• No explicit requirements
Which methods for ensuing I&A are provisioned for	• N.a.	• N.a.
Which requirements apply for I&A methods if ensured by a third-party (outsourcing)	• N.a.	• N.a.

7.1. e-Signature

Even where e-signature is not an explicit requirement, Pagero recommends that our customers apply it as, globally, it is the most widely accepted legal means of ensuring I&A for business transactions.

In practical terms, this results in the same evidential position for eDocuments as for paper documents. This unique feature of e-signature provides an exceptional level of legal certainty.

Item	Commentary
e-Signature technical requirements	• N.a.
Automated e-signing	• N.a.
Time-stamping of e-signature	• N.a.

7.2. e-Signature validation

The Recipient of an invoice is often required by law or practice to validate the e-signature on the received invoice. Even for countries where the validation-upon-receipt is not expressly regulated, this is recommended by Pagero for both trading partners to be able to guarantee I&A.

Item	Commentary
Validation upon receipt	N.a.
Time-stamping of validation data	N.a.



8. Document retention

This section describes archiving requirements regarding the e-Invoicing process and documents handled by Pagero. Please note, additional archiving requirements may apply to your specific documents.

Item	Commentary
Components to be stored (e.g. tax invoice, source documents, audit trail, I&A proof)	• Examples of records that must be held for VAT purposes include: tax invoices, nominal/general ledger, trial balance, etc.,
Requirements to present stored documents in a specific audit format	• In the case of any tax audits a paper version of the invoice shall be presented to the local tax authority
Legibility, i.e. the ability to read stored e-documents by an untrained eye	• No explicit requirements
Legibility requirements	• No explicit requirements
Retention period for invoices not related to immovable property⁷	• 10 years
Start point of retention period calculation for invoices not related to immovable property	• From the end of the taxable period to which they relate
Retention period for e- invoices related to immovable property	• N.a.
Start point of retention period calculation for invoices related to immovable property	• N.a.
Retention period for other than regular invoices or invoices related to immovable property (if existing):	• N.a.
Start point of retention period calculation for other than regular invoices or invoices related to immovable property:	• N.a.

⁷ Pagero stores all documents for 90 days due to data privacy and security regulations, after which the data is automatically deleted, unless Archive has been selected. Pagero provides long term archiving (for the legally required term, plus one year)

Outsourced archiving	• Not Allowed
Archiving abroad⁸ and conditions, if any (e.g. notification, derogation, online access, mutual tax assistance treaty)	• Not Allowed. VAT books and records must be held within the country
Other requirements in relation to electronic document retention	• Invoices must be printable from the archive upon request

⁸ In certain situations or jurisdictions deviating requirements – typically regarding archiving abroad – may apply to invoices and related documents, e.g. concerning matters of defence and national security. Therefore, Pagero encourages customers to inquire for and receive an explicit written statement from the local tax authority stating that the archiving of such documents outside of the taxpayer's country is permitted. Pagero in a capacity of a third-party may not apply for derogations or clarifications of this nature on behalf of a taxpayer.



9. Other transactional documents

Along with invoices, countries may have regulations relating to other trading documents. The purpose of this section is to provide a selective (not exhaustive) overview of the regulation of other transaction-related documents of importance.

Document	Commentary
Purchase order	• No explicit requirements
Rectification document	• Yes, see section 6.6 above
Payment instruction	• No explicit requirements
SAF-T (or alike) reporting	• No explicit requirements
Transportation documents	• No explicit requirements
Other	• N.a.

10. Other requirements

This section highlights certain aspects of the local regulations and infrastructure that differ from Pagero's General invoice processing and our standard country compliance investigation.

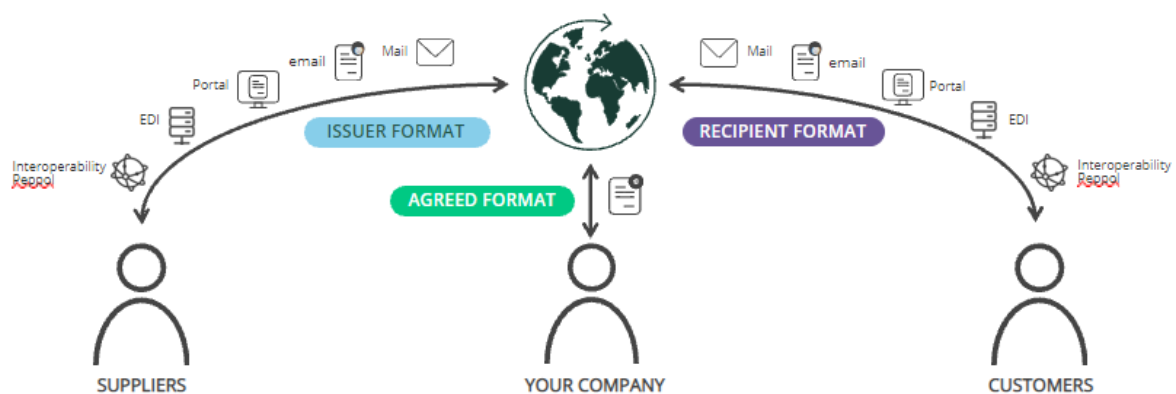
There is no other requirements on terms of invoicing or VAT compliance in DRC.



11. Country-specific processing

This section outlines how the Pagero General e-Invoicing process has been adapted to the local requirements to ensure compliant local processing.

11.1. Document issuance (AR) and reception (AP) with Pagero



(1) PAGERO ensures that documents can be exchanged with your company and your suppliers and customers, from your company perspective in a single format to ensure 100% digital AR and AP processing, while on the other hand in the preferred format and exchange mechanism with your trading partners

(2) PAGERO ensures the country-specific document content, document integrity and authenticity, as well as archiving requirements

(3) PAGERO supports unlimited number of document formats and multiple exchange mechanisms

(4) PAGERO supports such exchange channels as: Interoperability, Peppol, EDI, portal, e-mail, capturing / scanning, etc.



12. Closing statements

12.1. Confidentiality

This General invoice processing description of Pagero Online, our Country Compliance Reports, and other documents provided by Pagero are of confidential nature and are only intended for and may only be used by Pagero's Customers, their employees or other authorized recipients for the purpose or purposes specified and agreed to between the parties. Descriptions, reports, and documentation may not – neither in full nor in parts – be copied or otherwise distributed to third parties without Pagero's prior written consent.

12.2. Disclaimer

In order to establish a relationship based on trust and transparency with our Customers, Pagero provides its General e-Invoice and eArchiving processing descriptions of Pagero Online as well as Pagero's Country Compliance Reports. These documents are intended to enable our Customers and their tax advisors to assess how Pagero has interpreted the relevant legislation and implemented it in our processes in order to support our Customers to fulfil their legal obligations.

We would like to remind our Customers that, according to tax and accounting regulations, the outsourcing of any process to third parties (such as issuance, compiling, processing, receipt, or archiving of e-Invoices), will not lead to a shift of liability, the liability will remain with the Customer. Accordingly, the taxable person always remains responsible towards the local authorities for ensuring their e-Invoice compliance, and for fulfilling accounting and reporting requirements. We want to emphasise this, in the light of that there can be potentially conflicting regulations on regional, national, or international levels.

Pagero endeavours to only include and provide accurate and up to date information. However, Pagero makes no guarantees as to the accuracy of any statement, information or advice provided by Pagero, whether in writing or verbally. The Customer must make an informed decision about whether to adhere to and follow such recommendations or not.



The final decision and responsibility regarding tax, accounting, and reporting issues rest with the Customer.

Revision history

Date	What has changed
11 November 2019	Document created
19 April 2021	Section 6.7: Added Withholding tax rates
7 October 2021	Document content updated to a new template
7 July 2023	Full periodic update